Syllabus

NATIONAL REPUBLICAN SENATORIAL COMMITTEE ET AL. *v.* FEDERAL ELECTION COMMISSION ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SIXTH CIRCUIT

No. 24–621. Argued December 9, 2025—Decided June 30, 2026

The Federal Election Campaign Act (FECA) restricts a political party's spending on campaign activities in coordination with candidates. 52 U. S. C. §30116(d). In 2001, this Court upheld those coordinated-expenditure limits as consistent with the First Amendment. See *Federal Election Comm'n* v. *Colorado Republican Federal Campaign Comm.*, 533 U. S. 431 (*Colorado II*). Petitioners—a group of candidates and political party committees—challenged FECA's political-party coordinated-expenditure limits under the First Amendment, arguing that *Colorado II* is no longer good law. In light of *Colorado II*, the en banc U. S. Court of Appeals for the Sixth Circuit rejected petitioners' First Amendment challenge. This Court granted certiorari.

Held: FECA's political-party coordinated-expenditure limits violate the First Amendment. Pp. 917–936.

(a) The Court has jurisdiction under Article III. At the outset of the litigation, at least one of the plaintiffs—then-candidate for Senate JD Vance—undisputedly had standing. Vice President Vance still maintains an active "Statement of Candidacy" on file with the FEC indicating his intent to run for Senate in 2028, as well as a campaign committee that has raised money for a Senate race, establishing that this dispute is justiciable. Pp. 916–917.

(b) The First Amendment provides that "Congress shall make no law . . . abridging the freedom of speech." This Court has determined that political parties—as well as candidates, private individuals, and outside groups—may make unlimited *independent* expenditures during political campaigns. See *Buckley* v. *Valeo*, 424 U. S. 1, 39–59 (*per curiam*). This case concerns FECA's limits on spending by political parties *in coordination with candidates*. Pp. 917–931.

(1) FECA limits political-party coordinated expenditures. FECA's limits impair the party's traditional forms of communication such as advertisements; preclude parties from amplifying the voice of their adherents; impose additional monetary costs and burdens on political parties; and inflict a "stifling effect on the ability of the party to do what it exists to do." *Colorado Republican Federal Campaign Comm.*

Page Proof Pending Publication

v. *Federal Election Comm'n*, 518 U. S. 604, 630 (opinion of Kennedy, J.). Pp. 918–919.

(2) Statutory limits on contributions to candidates or parties are subject to "closely drawn" scrutiny. *McCutcheon* v. *Federal Election Comm'n*, 572 U. S. 185, 197 (plurality opinion). To satisfy that standard, a regulation may not be "disproportionate" and must be "necessary" and "narrowly tailored" to its asserted goal. *Id.*, at 199, 218, 220; *Federal Election Comm'n* v. *Ted Cruz for Senate*, 596 U. S. 289, 306. The Court must assess: (i) the Government's asserted interests in imposing the limits at issue and (ii) the fit between the limits and the Government's asserted interests. *McCutcheon*, 572 U. S., at 199.; see also *Cruz*, 596 U. S., at 305. The political-party coordinated-expenditure limits fail to satisfy the closely drawn test. Pp. 919–920.

(3) To analyze FECA's limits on political-party coordinated expenditures, the Court must first assess the asserted governmental interests justifying those limits. The Court's precedents recognize only one constitutionally permissible government objective for campaign finance restrictions: "preventing corruption or the appearance of corruption." *McCutcheon*, 572 U. S., at 206–207. And "Congress may target only a specific type of corruption—'*quid pro quo*' corruption." *Id.*, at 207. Particularly relevant here, this Court has recognized the risk of *quid pro quo* corruption or its appearance when a donor's contributions to a political party are earmarked—that is, "are directed, in some manner, to a candidate or officeholder." *Id.*, at 211 (quotation marks omitted).

Page Proof Pending Publication

Ultimately, the First Amendment question in this case boils down to whether FECA's limits on political-party coordinated expenditures are permissible in order to prevent circumvention of the base limits on contributions to candidates through earmarked contributions to parties. In *Colorado II*, this Court said that they were. 533 U. S., at 462–463. But *Colorado II* applied deferential scrutiny to Congress's political-party coordinated-expenditure limits. *Id.*, at 463, n. 26, 465. Since *Colorado II*, however, the Court has emphasized that under the closely drawn test, judicial review must be "rigorous." *McCutcheon*, 572 U. S., at 197. Under that more demanding standard, the Court agrees with petitioners that the political-party coordinated-expenditure limits are not proportionate, necessary, and narrowly tailored given the other less-speech-restrictive tools available to the Government to prevent circumvention—in particular, earmarking and disclosure laws.

With respect to earmarking laws: FECA treats an individual's contributions to a party that are "in any way earmarked or otherwise directed through an intermediary or conduit" to a federal candidate "as contributions from such person to such candidate"—and thus subject to the limits on contributions to candidates. 52 U. S. C. § 30116(a)(8). In *McCut-*

cheon, the Court explained that such earmarking rules constitute a targeted and constitutionally permissible way for the Government to prohibit circumvention of the base limits on contributions to candidates. 572 U. S., at 222–223. As JUSTICE THOMAS has explained: "Vigilant enforcement" of the earmarking rules is a more "precise response" by the Government to any "circumvention concerns." *Colorado II*, 533 U. S., at 481 (dissenting opinion).

With respect to disclosure laws: FECA requires that political parties and candidates publicly disclose both the contributions they receive and their spending on campaign activities, including on coordinated expenditures. § 30104(b). As the Court emphasized in *McCutcheon*, disclosure has become a much stronger anti-circumvention tool over time because of "modern technology," especially the Internet. 572 U. S., at 224.

Importantly, it is the combination of the base contribution limits *plus* the earmarking rules *plus* the disclosure requirements together that serve the Government's anti-circumvention interests here—without unduly restricting core political party speech. Given the meaningful prophylactic measures available to combat *quid pro quo* corruption or its appearance, the Court concludes that the political-party coordinated-expenditure limits at issue here are "disproportionate" and are not "necessary" and "narrowly tailored" for the circumvention interest. *Id.*, at 199, 218, 220 (quotation marks omitted); *Cruz*, 596 U. S., at 306. Pp. 920–931.

Page Proof Pending Publication

(c) *Amicus* and intervenors contend that the Court should adhere to *Colorado II* as a matter of *stare decisis*, but *Colorado II*'s reasoning has been rejected by the Court's more recent precedents and is no longer good law. To the extent that *Colorado II* has retained any vitality, it is now overruled. Pp. 932–936.

117 F. 4th 389, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and BARRETT, JJ., joined. KAGAN, J., filed a dissenting opinion, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 939.

Noel J. Francisco argued the cause for petitioners. With him on the briefs were *Donald F. McGahn II*, *John M. Gore*, *E. Stewart Crosland*, *John Henry Thompson*, and *Jessica Furst Johnson*.

Principal Deputy Solicitor General Harris argued the cause for respondents urging reversal. On the briefs were *Solicitor General Sauer* and *Vivek Suri*.

Counsel

Roman Martinez, by appointment of the Court, 606 U. S. 952, argued the cause and filed a brief as *amicus curiae* in support of the judgment below. With him on the brief was *Margaret A. Upshaw* and *Christina R. Gay*. *Marc E. Elias* argued the cause and filed a brief for intervenors DNC et al. With him on the brief were *David R. Fox*, *Jacob D. Shelly*, *Omeed Alerasool*, and *Julianna D. Astarita*.*

---

*Briefs of *amici curiae* urging reversal were filed for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, *Walter M. Weber*, and *Liam R. Harrell*; for The Buckeye Institute by *Jay R. Carson* and *David C. Tryon*; for the Cato Institute by *Thomas A. Berry* and *Dan Greenberg*; for the Chamber of Commerce of the United States of America by *Caleb P. Burns*, *Jeremy J. Broggi*, *Jonathan D. Urick*, and *Christopher J. Walker*; for the Georgia Republican Party, Inc., et al. by *Dan Backer* and *Alex Kaufman*; for the Institute for Free Speech et al. by *Bradley A. Smith*, *Brett R. Nolan*, and *Ilya Shapiro*; for the Republican National Committee by *Lee E. Goodman*; for the Republican Party of Florida by *Daniel E. Nordby*; and for Sen. Mitch McConnell by *Charles J. Cooper*, *Peter A. Patterson*, and *John D. Ohlendorf*.

Page Proof Pending Publication

Briefs of *amici curiae* urging affirmance were filed for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, *Graham E. Phillips*, Deputy Solicitor General, and *Amber Greenaway*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Charity R. Clark* of Vermont, *Nicholas W. Brown* of Washington, and *Josh Kaul* of Wisconsin; for the Campaign Legal Center et al. by *Tara Malloy*, *Adav Noti*, *David Kolker*, and *Erin Chlopak*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for Public Citizen by *Scott L. Nelson* and *Allison M. Zieve*; for Former Sen. Russ Feingold by *Rachel E. Snyder* and *Jeffrey A. Mandell*; and for Sen. Sheldon Whitehouse et al. by *Gerson H. Smoger*.

Briefs of *amici curiae* were filed for the State of Ohio et al. by *Dave Yost*, Attorney General of Ohio, *Mathura J. Sridharan*, Solicitor General,

JUSTICE KAVANAUGH delivered the opinion of the Court.

Ratified in 1791, the First Amendment provides that "Congress shall make no law . . . abridging the freedom of speech." As relevant here, the Federal Election Campaign Act, known as FECA, limits a political party's campaign spending. Those spending limits necessarily abridge political parties' freedom of speech: Because "virtually every means of communicating ideas in today's mass society requires the expenditure of money," a "restriction on the amount of money a person or group can spend on political communication during a campaign necessarily reduces the quantity of expression by restricting the number of issues discussed, the depth of their exploration, and the size of the audience reached." *Buckley* v. *Valeo*, 424 U. S. 1, 19 (1976) (*per curiam*).

Applying the First Amendment, this Court has long ruled that a political party possesses a right to make unlimited *independent* expenditures during a campaign—that is, ex-

Page Proof Pending Publication

and *Stephen P. Carney* and *Trane J. Robinson*, Deputy Solicitors General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Treg R. Taylor* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Christopher M. Carr* of Georgia, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew H. Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia; for Advancing American Freedom et al. by *J. Marc Wheat*; for the America First Policy Institute by *Gina D'Andrea*; for American Promise by *Felicia H. Ellsworth* and *Jeffrey D. Clements*; for the Brennan Center for Justice by *Claire Rajan*, *Daniel I. Weiner*, *Michelle Kallen*, *Paul S. Lee*, *Jefferson Klocke*, and *Lena Silva*; for Citizens for Responsibility and Ethics in Washington by *Stuart C. McPhail* and *Donald K. Sherman*; for the Liberty Justice Center by *Jeffrey Schwab*; for the Republican Governors Association by *Erin E. Murphy* and *James Y. Xi*; for *Randy Elf*, *pro se*; and for the Speaker of the House of Representatives Mike Johnson et al. by *Charles R. Spies*.